Equipment Loan Agreement

LOAN OF EQUIPMENT

This agreement is made on _____ between _____ (the **"Lender"**) and _____ (the **"Borrower"**).

1. The equipment

1.1 The Lender lends to the Borrower the following (the **"Equipment"**) and any accessories listed below.

Item and make	_____
Serial number or tag	_____
Accessories	_____
Estimated value	_____

2. Condition when lent

2.1 The Equipment is in this condition: _____.

2.2 Notes on condition, including any marks or damage:

_____

2.3 The Borrower has examined the Equipment and agrees that this description is accurate. ☐ I agree that the condition is as described

3. The loan

3.1 The loan starts on _____ and the Borrower will return the Equipment by _____, to _____. The loan is free of charge.

3.2 The Borrower may keep the Equipment longer only if the Lender agrees in writing. The Lender may ask for its return earlier on reasonable notice if it needs it, or immediately if the Borrower breaks this agreement.

4. How it may be used

4.1 The Borrower will use the Equipment only for _____, in the way it is meant to be used and following the maker's instructions and any safety rules the Lender gives.

4.2 The Borrower will keep the Equipment safe and secure, will not lend, sell, rent out or give anyone else possession of it, will not alter or repair it, and will keep it at _____ unless the Lender agrees otherwise.

4.3 The Lender remains the owner at all times. The Borrower will keep it free of any claim by anyone else.

5. Loss and damage

5.1 The Borrower is responsible for the Equipment from the time they receive it until the Lender has it back. If it is lost, stolen or damaged, other than by normal wear from proper use, the Borrower will tell the Lender straight away, and will pay the cost of repair, or if it cannot be repaired its estimated value above less fair wear.

5.2 The Borrower should check whether their own insurance covers borrowed equipment. The Lender is not responsible for any loss, injury or damage that results from the Borrower's use of the Equipment, except where the law does not allow that to be limited.

6. Returning it

6.1 On return, the Lender and the Borrower will inspect the Equipment together and note its condition. If there is a difference from the condition recorded above that is more than normal wear, the Lender will tell the Borrower in writing within seven days.

7. Looking after the equipment

7.1 The Borrower will keep the Equipment clean and in the condition in which it was lent, apart from normal wear from proper use, will keep any labels, tags and serial numbers on it, and will not use it near water, extreme heat or anything else that the maker's instructions warn against.

7.2 If the Equipment stops working or needs a repair, the Borrower will stop using it, tell the Lender, and wait for the Lender's instructions. The Borrower will not pay for a repair without the Lender's agreement.

8. Governing law

8.1 This document, and any dispute arising out of it, is governed by the laws of the State of _____, without regard to its rules about conflicts of laws.

9. General

9.1 **Changes in writing.** A change to this agreement is effective only if it is in writing and signed by both sides. An email exchange does not change it unless each side expressly says that it is a change and signs it electronically.

9.2 **Counterparts and electronic signatures.** This agreement may be signed in separate copies, which together are one document. A signature made electronically, including by typing, drawing or selecting a signature, is as effective as a handwritten one, and each side agrees to sign and keep this agreement in electronic form.

Signatures

By signing below, each party agrees to this document and confirms that the person signing has the authority to do so.

LENDER	BORROWER
_____	_____
PRINTED NAME	PRINTED NAME
_____	_____
TITLE OR CAPACITY	TITLE OR CAPACITY
_____	_____
SIGNATURE	SIGNATURE
_____	_____
DATE	DATE